JUSTICE THOMAS, concurring.

The Court's opinion correctly holds that an alien "who seeks to enter the United States from Mexico" does not "'arriv[e] *in* the United States' when he or she is still *in* Mexico." *Ante*, at 262 (footnote omitted). I join it in full. I write separately to address two further problems with the decision below. First, the District Court appeared to effectively grant the classwide injunctive relief that Congress has prohibited in this context. See 8 U. S. C. § 1252(f)(1). Second, the relief that the District Court provided may well have unconstitutionally infringed on the President's inherent authority to exclude aliens from the country.

I

A

The Immigration and Nationality Act (INA) imposes various restrictions on judicial review of immigration enforcement. As relevant here, § 1252(f)(1) provides: "Regardless of the nature of the action or claim or of the identity of the party or parties bringing the action, no court (other than the Supreme Court) shall have jurisdiction or authority to enjoin or restrain the operation of" certain parts of the INA. It contains an exception only for relief granted on an individual basis. *Ibid.* This provision thus "strips lower courts of 'jurisdiction or authority' to 'enjoin or restrain the operation of'" these parts of the INA on a classwide basis. *Garland* v. *Aleman Gonzalez*, 596 U. S. 543, 548 (2022) (quoting § 1252(f)(1)). In *Aleman Gonzalez*, we interpreted this jurisdictional bar to "prohibi[t] lower courts from entering injunctions that order federal officials to take or to refrain from taking actions to enforce, implement, or otherwise carry out the specified statutory provisions." *Id.*, at 550.

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B

Respondents sought relief that § 1252(f)(1) prohibits. The District Court certified their proposed class of "'all nonciti-

zens who seek or will seek to access the U. S. asylum process by presenting themselves' " at a port of entry at the U. S.-Mexico border and who " 'were or will be denied access to the U. S. asylum process by or at the instruction of' " border officials. *Al Otro Lado, Inc.* v. *Mayorkas*, 619 F. Supp. 3d 1029, 1033, n. 2 (SD Cal. 2022). They asked the court for an injunction against the Government's "metering" practice, which temporarily prevented class members from entering the country to be inspected under § 1225. *Id.*, at 1035–1036; see *ante*, at 264–265. They also asked the court to appoint a magistrate judge as a "special master . . . to monitor and oversee" the Government's "implementation of all class-wide injunctive relief." 619 F. Supp. 3d, at 1036.

The District Court acknowledged that our interpretation of § 1252(f)(1) in *Aleman Gonzalez* barred this relief. 619 F. Supp. 3d, at 1045.[1] It correctly concluded that *Aleman Gonzalez* "squarely" controls this case, such that the requested injunctive relief "must be construed as enjoining or restraining the operation of § 1225 because it would have the effect of interfering with the Government's efforts to operate § 1225." 619 F. Supp. 3d, at 1045 (internal quotation marks omitted; alterations adopted). After all, by requiring border officials to carry out § 1225's inspection and asylum-interview procedures for the class members, the requested

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[1] The District Court followed *Aleman Gonzalez*'s holding on this point, but it expressed its view that "*Aleman Gonzalez* . . . deflates the historical and traditional role of Article III courts" and "undermines" the "fundamental principle of federalism" that "federal agencies and courts are bound to give effect to the unambiguously expressed intent of Congress." *Al Otro Lado, Inc.* v. *Mayorkas*, 619 F. Supp. 3d 1029, 1044 (SD Cal. 2022) (internal quotation marks omitted); see also *ibid.* (expressing its displeasure that "*Aleman Gonzalez* . . . confers to immigration enforcement agencies power to unilaterally ignore or deviate from the Congressional mandates set forth in the removal provisions of the INA"); *id.*, at 1043 (describing "competing obligations" between obeying Supreme Court precedent and not "applying § 1252(f)(1) in a manner that produces absurd results" (internal quotation marks omitted; alteration adopted)).

injunction would "order federal officials to take" actions to "implement" or "carry out" a covered provision. *Aleman Gonzalez*, 596 U. S., at 550.

Nonetheless, the District Court effectively gave Respondents all that they asked for in the form of nominally declaratory relief. Even after *Aleman Gonzalez*, the Ninth Circuit maintains that § 1252(f)(1) allows "classwide declaratory relief." *Rodriguez* v. *Hayes*, 591 F. 3d 1105, 1120 (2010); see also *Al Otro Lado* v. *Executive Office for Immigration Review*, 138 F. 4th 1102, 1123–1124 (2025) (case below). So, the District Court issued a declaration that the Government's metering policy was unlawful. As a source of authority for this relief, it invoked § 706(1) of the Administrative Procedure Act (APA), which allows courts to "*compel* agency action unlawfully withheld or unreasonably delayed," 5 U. S. C. § 706(1) (emphasis added). See 619 F. Supp. 3d, at 1032, 1049. Citing § 706(1) and the Ninth Circuit's precedents authorizing declaratory relief, the District Court entered a judgment "that, absent any independent, express, and lawful statutory authority, Defendants' refusal to provide inspection or asylum processing to" aliens "who are in the process of arriving in the United States" at ports of entry "is unlawful regardless of the purported justification for doing so." *Id.*, at 1049. The Ninth Circuit affirmed. 138 F. 4th, at 1123–1124, 1128.

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II

In a future case, this Court should address this apparent end-run around § 1252(f)(1) and *Aleman Gonzalez*.

I am skeptical that the relief that the District Court ordered complies with § 1252(f)(1). The statute provides that "no court" may "enjoin or *restrain* the operation of" § 1225, subject to limited exceptions. § 1252(f)(1) (emphasis added). In *California* v. *Grace Brethren Church*, 457 U. S. 393 (1982), decided before § 1252(f)(1) was enacted, the Court interpreted near-identical language in the Tax Injunction Act to bar all declaratory relief. Compare 28 U. S. C. § 1341 ("dis-

trict courts shall not enjoin, suspend or restrain the . . . collection of" state taxes) with 8 U. S. C. § 1252(f)(1) ("no court (other than the Supreme Court) shall have jurisdiction or authority to enjoin or restrain the operation of" specified provisions).[2] In *Grace Brethren Church*, the plaintiffs sought a "declaratory judgment holding state tax laws unconstitutional." 457 U. S., at 408. Even though the plaintiffs did not seek an injunction, the Court held that the Act barred granting the declaration. *Id.*, at 411. It reasoned that "there is little practical difference between injunctive and declaratory relief," *id.*, at 408, so the declaration in question was an order to "enjoin, suspend or restrain" the collection of taxes and thus barred by the Act, 28 U. S. C. § 1341.[3]

The same rationale seems to apply to § 1252(f)(1): Declaratory judgments that immigration enforcement actions are unlawful have the practical effect of "restraining" the Government in the same way that an injunction would. See *Alli* v. *Decker*, 650 F. 3d 1007, 1019 (CA3 2011) (Fuentes, J., dissenting). After all, the Government "conform[s] its current conduct to what a court has declared to be the law," just as it would under an injunction. Tr. of Oral Arg. 89. If anything, § 1252(f)(1) more clearly forbids such declaratory relief than the Tax Injunction Act because it carried over nearly the exact words that *Grace Brethren Church* had already interpreted to preclude declaratory relief. See *Williams* v. *Taylor*, 529 U. S. 420, 434 (2000); *Learning Re-*

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[2] Section 1252(f) was added to the INA as part of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, 110 Stat. 3009–611 to 3009–612.

[3] As Judge Fuentes of the Third Circuit has explained, the Court has applied this reasoning in other contexts, as well. *Alli* v. *Decker*, 650 F. 3d 1007, 1018 (2011) (dissenting opinion). In *Samuels* v. *Mackell*, 401 U. S. 66 (1971), the Court held that a declaratory judgment would have "virtually the same practical impact as a formal injunction," *id.*, at 72, so the holding of *Younger* v. *Harris*, 401 U. S. 37 (1971), barring injunctions against state criminal proceedings, *id.*, at 41, applied to declaratory judgments, too.

sources, Inc. v. *Trump*, 607 U. S. 229, 344–345 (2026) (KAVANAUGH, J., dissenting).

Even if some declaratory relief were compatible with § 1252(f)(1), the relief entered here likely is not. The Government was subject to a declaration that, under § 706(1) of the APA, it was illegal for it to withhold inspection from the class members. See *supra*, at 281. The court's judgment was therefore a declaration that the Government's metering policy resulted in "agency action unlawfully withheld or unreasonably delayed." A § 706(1) order, by its plain terms, "compel[s]" the agency to carry out the relevant duties under § 1225. So, like the injunction held unlawful in *Aleman Gonzalez*, this judgment under § 706(1) appears to "require officials to take actions that (in the Government's view) are not required by" covered provisions of the INA, contrary to § 1252(f)(1). 596 U. S., at 551.

The Court has repeatedly reserved the question whether § 1252(f)(1) bars declaratory relief. *Ibid.*, n. 2; *Biden* v. *Texas*, 597 U. S. 785, 801, n. 4 (2022). In this case, the Government did not press the issue, and the Court correctly reverses the Ninth Circuit's clearly erroneous merits holding. The Court should soon address the apparent resistance to, and evasion of, § 1252(f)(1) in a future case.

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III

Separately, even if the statute authorized the District Court's order effectively requiring executive officials to bring certain aliens into the country, it would raise serious constitutional questions.

"[T]he President has *inherent* authority to exclude aliens from the country." *Trump* v. *Hawaii*, 585 U. S. 667, 712 (2018) (THOMAS, J., concurring). There is "founding-era evidence" showing "that 'the executive Power,' Art. II, § 1, includes the power to deport aliens." *Sessions* v. *Dimaya*, 584 U. S. 148, 217 (2018) (THOMAS, J., dissenting). For example, William Blackstone explained that the King could send

alien friends "home whenever the king sees occasion." 1 Commentaries on the Laws of England 252 (1765). And, at the time of ratification, Framers of the Constitution argued that the President would have the same power. See *Sessions*, 584 U. S., at 218 (collecting sources).

Congress, for its part, has no enumerated power to require the President to bring certain aliens into the country. The Constitution grants Congress the power to "establish an uniform Rule of Naturalization." Art. I, § 8, cl. 4. But, the class members in this case are not naturalized or even on the path to naturalization. The Necessary and Proper Clause, Art. I, § 8, cl. 18, likewise does not give Congress this power. Congress may pass laws "which shall be necessary and proper for carrying into Execution" its powers and those of the other branches of the Federal Government. *Ibid.* But, a law is not "proper" in this sense if it "purports to direct another branch's exercise of its power," or, at a minimum, "takes one of those actions *and* the branch to which the power is allocated objects to the action." *Zivotofsky* v. *Kerry*, 576 U. S. 1, 50 (2015) (THOMAS, J., concurring in judgment in part and dissenting in part). So, any statute that forced the President to allow aliens to cross the border against his will would appear to exceed Congress's enumerated powers, and a court could not enforce it against the President.

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JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Since 1917, Congress has required immigration officers to inspect noncitizens who arrive at ports of entry to determine whether they may enter the United States. Since 1980, Congress has allowed noncitizens who are fleeing persecution in their home country to apply for asylum as part of this inspection process. Congressional statutes lay out a mandatory set of procedures to guide this process. A noncitizen who "arrives in the United States (whether or not at a desig-